

STATE OF NEW YORK

9990--A

Cal. No. 1086

IN SENATE

April 21, 2026

Introduced by Sens. SKOUFIS, COONEY, RAMOS -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the alcoholic beverage control law, in relation to authorizing licensees to remain open for extended hours of operation statewide for a specific period of time; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 5 of section 106 of the alcoholic beverage
2 control law, as amended by chapter 83 of the laws of 1995, paragraph (a)
3 as amended by chapter 160 of the laws of 2024, paragraph (b) as amended
4 and paragraph (c) as added by section 1 of part FF of chapter 55 of the
5 laws of 2020, is amended to read as follows:

6 5. No alcoholic beverages shall be sold, offered for sale or given
7 away upon any premises licensed to sell alcoholic beverages at retail
8 for on-premises consumption, during the following hours:

9 (a) Except as provided in paragraph (c) of this subdivision, on
10 Sunday, from four ante meridiem to ten o'clock a.m., except pursuant to
11 a permit issued under section ninety-nine-h or subdivision five of
12 section ninety-seven of this chapter.

13 (b) Except as provided in paragraph (c) of this subdivision, on any
14 other day between four ante meridiem and eight ante meridiem.

15 (c) On any day between three ante meridian and six ante meridian, for
16 a premises located within an international airport owned or operated by
17 the Port Authority of New York and New Jersey. The provisions of this
18 paragraph shall not be subject to change pursuant to subdivision eleven
19 of section seventeen of this chapter.

20 Unless otherwise approved by the authority pursuant to subdivision
21 eleven of section seventeen of this chapter, where any rule has been
22 adopted in a county on or before April first, nineteen hundred ninety-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 five, further restricting the hours of sale for alcoholic beverages,
2 such restricted hours shall be the hours, during which the sale of alco-
3 holic beverages at retail for on-premises consumption shall not be
4 permitted within such county; provided, however, that for the period
5 commencing on June eleventh, two thousand twenty-six and ending on July
6 twentieth, two thousand twenty-six, any on-premises consumption licensee
7 may sell or offer for sale alcoholic beverages in accordance with the
8 provisions of paragraphs (a) and (b) of this subdivision notwithstanding
9 the fact that a county may have previously imposed more restrictive
10 hours of operation within the county. This change in hours shall not
11 apply in any case where the authority may have imposed more restrictive
12 hours as a condition of a license.

13 Nor shall any person be permitted to consume any alcoholic beverages
14 upon any such premises later than one-half hour after the start of the
15 prohibited hours of sale provided for in this section.

16 § 2. This act shall take effect immediately and shall expire and be
17 deemed repealed July 21, 2026.